

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: March 18, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER SETTING STATUS CONFERENCE

On June 17, 2025, Complainant filed a Verified Complaint in this matter. The Initial Decision of the presiding judge shall be issued by June 17, 2026. (*See Notice of Filing of Complaint and Assignment*). Currently, discovery is scheduled to close on March 23, 2026, and briefing is scheduled to be completed by May 29, 2026. (*See Order Granting Joint Motion for Protective Order, and Granting in Part Motion to Extend Discovery and Case Deadlines*).

On March 9, 2026, Complainant filed Complainant's Combined Motion to Exceed Page Limits and to Compel Reasonable Discovery ("March 9 Motion"). The March 9 Motion includes Complainant's Motion to Compel Reasonable Discovery ("MTC"). On March 17, 2026, I entered an Order Granting Motions for Leave to Exceed Page Limits and Motion for Extension of Response Deadline, giving Respondent until March 23, 2026, to respond to the MTC.

The outstanding discovery dispute may result in additional discovery productions after March 23, 2026. Further, a key issue in this case is whether Respondent was acting as a non-vessel ocean common carrier regarding the containers at issue; this factual-issue that may be appropriate for an in-person hearing.

Accordingly, the parties are **HEREBY ORDERED** to appear for a status conference on Thursday, March 19, 2026, at 3:00 PM EDT. The conference will be conducted via Teams; the parties' representatives will receive a Teams link. The representatives should be prepared to discuss the remaining schedule for this case, along with whether a hearing should be conducted in-person or in-writing on the briefs.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
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Richard Ambrow
Administrative Law Judge